

## Raj Bahadur v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 January 2021 · WRIT - C No. - 22388 of 2020 · **Writ disposed of; bill-correctness dispute relegated to Regulation 6.5.**

### HEADNOTE

A writ disputing the correctness of an electricity bill and claiming adjustment of prior payments was disposed of by relegating the petitioner to the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, to consider the claim in accordance with law, preferably within six weeks.

### FACTUAL SUMMARY

Raj Bahadur filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and others, including the Power Corporation, disputing the correctness of an electricity bill and claiming entitlement to adjustment of prior payments. None appeared for him on 17 December 2020, so the matter was listed as a fresh case. On 4 January 2021 the Court directed fresh service on counsel for the Power Corporation. The petition was then heard on 19 January 2021 with both sides represented.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

disputed electricity bill — Regulation 6.5 remedy

#### HOLDING

Where a writ petitioner disputes the correctness of an electricity bill, including a claim to adjustment of prior payments, the appropriate remedy is to approach the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider the claim in accordance with law; the writ is disposed of on that footing. ¶ 3

### PRINCIPLE TAGS

**clause-6.5-alternate-remedy** Writ on bill correctness and prior-payment adjustment disposed by relegating the petitioner to Regulation 6.5. ¶ 3

**clause-6.5-statutory-remedy-disputed-bill** Dispute over correctness of the electricity bill treated as a Regulation 6.5 claim, not decided on the writ. ¶ 3

**6.5-representation-as-appropriate-remedy** Power Corporation's statement that Regulation 6.5 was the appropriate remedy was accepted and the petition disposed accordingly. ¶ 3

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND ENTITLEMENT TO ADJUSTMENT OF PRIOR PAYMENTS

Left to the competent authority under Regulation 6.5 to consider in accordance with law. ¶ 3